

# **THE FAMILY COURTS ACT, 1964**

**(Act XXXV of 1964)**

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## **SCHEDULE**



# **<sup>1</sup>THE FAMILY COURTS ACT, 1964**

## **(Act XXXV of 1964)**

[18 July 1964]

*An Act to make provision for the establishment of Family Courts.*

**Preamble.— WHEREAS** it is expedient to make provision for the establishment of Family Courts for the expeditious settlement and disposal of disputes relating to marriage and family affairs and for matters connected therewith;

It is hereby enacted as follows:-

**1. Short title, extent and commencement.—** (1) This Act may be called the <sup>2</sup>[\* \* \*] Family Courts Act, 1964.

<sup>3</sup>[(2) It shall extend to whole of the Punjab.]

(3) It shall come into force in such area or areas and on such date or dates as Government may, by notification in the official Gazette, specify in this behalf.

<sup>4</sup>[(4) Nothing in this Act shall apply to any suit or any application under the Guardians and Wards Act, 1890, pending for trial or hearing in any Court immediately before the coming into force of this Act, and all such suits and applications shall be heard and disposed of as if this Act was not in force.

(5) Any suit, or any application under the Guardians and Wards Act, 1890, which was pending for trial or hearing in any Court immediately before the coming into force of this Act, and which has been dismissed solely on the ground that such suit or application is to be tried by a Family Court established under this Act, shall, notwithstanding anything to the contrary contained in any law, on petition made to it in that behalf by any party to the suit or application, be tried and heard by such Court from the stage at which such suit or application had reached at the time of its dismissal.]

**2. Definitions.—** <sup>5</sup>[(1)] In this Act, unless the context otherwise requires, the following expressions shall have the meanings hereby respectively assigned to them, that is to say—

(a) “Arbitration Council” and “Chairman” shall have the meanings respectively assigned to them in the Muslim Family Laws Ordinance, 1961;

(b) “Family Court” means a Court constituted under this Act;

<sup>6</sup>[(c) “Government” means Government of the Punjab;]

(d) “party” shall include any person whose presence as such is considered necessary for a proper decision of the dispute and whom the Family Court adds as a party to such dispute;

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<sup>1</sup>For statement of objects and reasons see Gazette of West Pakistan (Extraordinary), dated 6th April, 1964, pages 1153-P to 1155-W.

This Act was passed by the West Pakistan Assembly on 30th June, 1964; assented to by the Governor of West Pakistan on 14th July, 1964; and, published in the West Pakistan Gazette (Extraordinary), dated 18th July, 1964, pages 2427-34.

<sup>2</sup>The words “West Pakistan” omitted by the Family Court (Amendment) Act, 1996 (Federal Act X of 1996).

<sup>3</sup>Substituted by the Family Courts (Amendment) Act 2015 (XI of 2015) for the following:

“(2) It extends to the whole of [Pakistan].”

The word “Pakistan” was earlier substituted by the Federal Adaptation of Laws Order, 1975 (P.O. 4 of 1975), for “the Province of West Pakistan except the Tribal Areas”.

<sup>4</sup>Added by the West Pakistan Family Courts (Amendment) Ordinance, 1966 (X of 1966).

<sup>5</sup>Section 2 re-numbered as sub-section (1) of that section by the West Pakistan Family Courts (Amendment) Ordinance, 1966 (X of 1966).

<sup>6</sup>Substituted by the Family Courts (Amendment) Act 2015 (XI of 2015) for the following:

“(c) “Government means [the Provincial Government].”

The words “the Provincial Government” were earlier substituted by the Federal Adaptation of Laws Order, 1975 (P.O. 4 of 1975), for “the Government of West Pakistan”.

(e) “prescribed” means prescribed by rules made under this Act <sup>1</sup>[;]

<sup>2</sup>[(f) “Schedule” means the Schedule appended to the Act; and

(g) “Union Council” means a Union Council, Municipal Committee, Cantonment Board, Union Administration or, in case of absence of any of these local governments in a local area, any other comparable body or authority constituted under any law relating to the local governments or local authorities.]

<sup>3</sup>[(2) Words and expressions used in this Act but not herein defined, shall have the meanings respectively assigned to them in the Code of Civil Procedure, 1908.]

**4[3. Establishment of Family Courts.—** (1) Government shall establish one or more Family Courts in each District or at such other place or places as it may deem necessary and appoint a Judge for each of such Court:

Provided that at least one Family Court in each District, shall be presided over by a woman Judge to be appointed within a period of six months or within such period as the <sup>5</sup>[Government may extend].

(2) A woman Judge may be appointed for more than one District and in such cases the woman Judge may sit for the disposal of cases at such place or places in either District, as the <sup>6</sup>[\*] Government may specify.

(3) Government shall, in consultation with the High Court, appoint as many woman Judges as may be necessary for the purposes of sub-section (1).]

**7[4. Qualifications of Judge.—** No person shall be appointed as a Judge of a Family Court unless he is or has been <sup>8</sup>[or is qualified to be appointed as] a District Judge, an Additional District Judge, <sup>9</sup>[a Civil Judge or a Qazi appointed under the Dastur-ul-Amal Diwani, Riasat Kalat].

**5. Jurisdiction.—** <sup>10</sup>[1] Subject to the provisions of the Muslim Family Laws Ordinance, 1961, and the Conciliation Courts Ordinance, 1961, the Family Courts shall have exclusive jurisdiction to entertain, hear and adjudicate upon matters specified in <sup>11</sup>[Part I of the Schedule].

<sup>12</sup>[(2) Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898), the Family Court shall have jurisdiction to try the offences specified in Part II of the Schedule, where one of the spouses is victim of an offence committed by the other.]

<sup>13</sup>[(3) The Government may amend the Schedule through addition, deletion or substitution of any entry in the Schedule.]

<sup>1</sup>Substituted for the full-stop by the Family Courts (Amendment) Act 2015 (XI of 2015).

<sup>2</sup>Inserted by the Family Courts (Amendment) Act 2015 (XI of 2015).

<sup>3</sup>New sub-section (2) added by the West Pakistan Family Courts (Amendment) Ordinance, 1966 (X of 1966).

<sup>4</sup>Substituted by the West Pakistan Family Courts (Amendment) Act, 1994 (Federal Act XXI of 1994).

<sup>5</sup>Substituted by the Family Courts (Amendment) Act 2015 (XI of 2015) for “Federal Government may, on the request of Provincial Government, extend”.

<sup>6</sup>The word “Provincial” omitted by the Family Courts (Amendment) Act 2015 (XI of 2015).

<sup>7</sup>Substituted by the West Pakistan Family Courts (Amendment) Ordinance, 1966 (X of 1966).

<sup>8</sup>Inserted by the West Pakistan Family Courts (Amendment) Act, 1994 (Federal Act XXI of 1994).

<sup>9</sup>Substituted by the West Pakistan Family Courts (Amendment) Act, 1969 (I of 1969), for “a Civil Judge”.

<sup>10</sup>Section 5 re-numbered as sub-section (1) by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>11</sup>Substituted for “the Schedule” by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>12</sup>New sub-section (2) added by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>13</sup>The following sub-section (3) was added by the Family Courts (Amendment) Ordinance 2002 (LV of 2002) and substituted by the Family Courts (Amendment) Act 2015 (XI of 2015):

“(3) The High Court may, with the approval of the Government, amend the Schedule so as to alter, delete or add any entry thereto.”

**6. Place of sittings.**— Subject to any general or special orders of Government in this behalf a Family Court shall hold its sittings at such place or places within <sup>1</sup>[the District or area for which it is established] as may be specified by the District Judge.

**7. Institution of suits.**— (1) Every suit before a Family Court shall be instituted by the presentation of a plaint or in such other manner and in such Court as may be prescribed.

(2) The plaint shall contain all <sup>2</sup>[material] facts relating to the dispute and shall contain a Schedule giving the number of witnesses intended to be produced in support of the plaint, the names and addresses of the witnesses and brief summary of the facts to which they would depose:

<sup>3</sup>[Provided that a plaint for dissolution of marriage may contain all claims relating to dowry, maintenance, dower, personal property and belongings of wife, custody of children and visitation rights of parents to meet their children:]

Provided <sup>4</sup>[further] that parties may, with the permission of the Court, call any witness at any later stage, if the Court considers such evidence expedient in the interest of justice.

<sup>5</sup>[(3) (i) Where a plaintiff sues or relies upon a document in his possession or power, he shall produce it in court when the plaint is presented, and shall at the same time, deliver the document or a copy thereof to be filed with the plaint.

(ii) Where he relies on any other document not in his possession or power, as evidence in support of his claim, he shall enter such documents in a list to be appended to the plaint <sup>6</sup>[giving reasons of relevancy of these documents to the claim in the plaint].]

(4) The plaint shall be accompanied by as many duplicate copies thereof including the Schedule and the lists of documents referred to in sub-section (3), as there are defendants in the suit, for service upon the defendants.

**<sup>7</sup>8. Intimation to defendant.**— (1) When a plaint is presented to a Family Court, it shall:

(a) fix a date which shall not be more than fifteen days for the appearance of the defendant;

<sup>1</sup>Substituted by the West Pakistan Family Courts (Amendment) Ordinance, 1966 (X of 1966), for “the Districts”.

<sup>2</sup>Inserted by the West Pakistan Family Courts (Amendment) Ordinance, 1966 (X of 1966).

<sup>3</sup>Inserted by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>4</sup>Inserted by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>5</sup>Substituted by the West Pakistan Family Courts (Amendment) Act, 1969 (I of 1969).

<sup>6</sup>Added by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>7</sup>The following section 8, having been previously substituted by the West Pakistan Family Courts (Amendment) Act, 1969 (I of 1969), and successively been amended by various enactments, was substituted by the Family Courts (Amendment) Act 2015 (XI of 2015):

**“8. Intimation to defendants.**— (1) When a plaint is presented to a Family Court, it—

(a) [shall] fix a date [\* \*] of not more than thirty days for the appearance of the defendant;

(b) shall issue summons to the defendant to appear on a date specified therein;

[(c) shall, within three days of the presentation of the plaint, send to each defendant, by registered post, acknowledgment due, [or by courier service or by both] a notice of the suit, together with a copy of the plaint, a copy of the Schedule referred to in sub-section (2) of section 7 and copies of the documents and a list of documents referred to in sub-section (3) of the said section].

(2) Every summons issued under clause (b) of sub-section (1) shall be accompanied by a copy of the plaint, a copy of the Schedule referred to in sub-section (2) of section 7, and copies of the documents and list of documents referred to in sub-section (3) of the said section.

[(3) \* \* \* \* \*]

(4) Service of the plaint and its accompaniments in the manner provided in clause (b) or clause (c) of sub-section (1) shall be deemed to be due service of the plaint upon the defendant.

(5) Every notice and its accompaniments under clause (c) of sub-section (1) shall be served at the expense of the plaintiff. The postal charges for such service shall be deposited by the plaintiff at the time of filing the plaint.

(6) Summons issued under clause (b) of sub-section (1) shall be served in the manner provided in the Code of Civil Procedure, 1908, Order V, Rules 9, 10, 11, 16, 17, 18, 19, [20.] 21, 23, 24, 26, 27, 28 and 29. The cost of such summons shall be assessed and paid as for summons issued under the Code of Civil Procedure, 1908.

*Explanation*— [\* \* \* \* \*]

- (b) within two days of the presentation of the plaint, sent a notice or summons of the suit to a defendant through a process serving agency of the Family Court, registered post acknowledgment due, electronically or through courier, together with a copy of the plaint, a copy of the schedule referred to in subsection (2) of section 7 and copies of the documents and a list of documents referred to in subsection (3) of section 7; and
  - (c) direct that the notice or summons issued under clause (b) also be served through affixation and shall simultaneously issue a proclamation in a newspaper.
- (2) While issuing the notice or summons to a defendant, the Family Court shall require the defendant to submit a written statement on the day mentioned in the notice or summons.]

**<sup>1</sup>[9. Written statement.—** <sup>2</sup>[(1) On the date fixed under section 8, the defendant shall appear before the Family Court and file the written statement, a list of witnesses and gist of evidence, and in case the written statement is not filed on that date, the Family Court may, for any sufficient reasons which prevented the defendant from submitting the written statement, allow the defendant to submit the written statement and other documents on the next date which shall not exceed fifteen days from that date.]

<sup>3</sup>[(1a) A defendant husband may, where no earlier suit for restitution of conjugal rights is pending, claim for a decree of restitution of conjugal rights in his written statement to a suit for dissolution of marriage or maintenance, which shall be deemed as a plaint and no separate suit shall lie for it.

(1b) A defendant wife may, in the written statement to a suit for restitution of conjugal rights, make a claim for dissolution of marriage including khula which shall be deemed as a plaint and no separate suit shall lie for it: Provided that the proviso to sub-section (4) of Section 10 shall apply where the decree for dissolution of marriage is to be passed on the ground of *khula*.]

(2) Where a defendant relies upon a document in his possession or power, he shall produce it or copy thereof in the Court alongwith the written statement.

(3) Where he relies on any other document, not in his possession or power, as evidence in support of his written statement, he shall enter such documents in a list to be appended to the written statement <sup>4</sup>[giving reasons of relevancy of these documents to the defence in the written statement].

(4) Copies of the written statement, list of witnesses and precis of evidence referred to in sub-section (1) and the documents referred to in sub-section (2) shall be given to the plaintiff, his agent or advocate present in the Court.

(5) If the defendant fails to appear on the date fixed by the Family Court for his appearance, then—

- (a) if it is proved that the summons or notice was duly served on the defendant, the Family Court may proceed *ex parte*; provided that where the Family Court has adjourned the hearing of the suit *ex parte*, and defendant at or before such hearing appears and assigns good cause for his previous non-appearance, he may, upon such terms as the Family

<sup>1</sup>Substituted by the West Pakistan Family Courts (Punjab Amendment) Ordinance, 1971 (XXIV of 1971).

<sup>2</sup>Substituted by the Family Courts (Amendment) Act 2015 (XI of 2015) for the following:

“(1) On the date fixed-under clause (a) of sub-section (1) of section 8, the plaintiff and the defendant shall appear before the Family Court and the defendant shall file his written statement, and attach therewith a list of his witnesses alongwith a precis of the evidence that each witness is expected to give.”

<sup>3</sup>New subsections (1a) and (1b) inserted by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>4</sup>Added by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

Court directs, be heard in answer to the suit as if he had appeared on the day fixed for his appearance; and

- (b) if it is not proved that the defendant was duly served as provided in sub-section (4) of section 8, the Family Court shall issue fresh summons and notices to the defendant and cause the same to be served in the manner provided in clauses (b) and (c) of sub-section (1) of section 8.

<sup>1</sup>[(5A) If the defendant fails to submit the written statement on or before the date under subsection (1), the defence of the defendant shall stand struck off and the Family Court shall decide the case under the law.]

(6) In any case in which a decree is passed *ex parte* against a defendant under this Act, he may apply within <sup>2</sup>[thirty days of the service of notice under sub-section (7) of the passing of the decree] to the Family Court by which the decree was passed for an order to set it aside, and if he satisfies the Family Court that he was not duly served, or that he was prevented by any sufficient cause from appearing when the suit was heard or called for hearing, the Family Court shall, after service of notice on the plaintiff, and on such terms as to costs as it deems fit, make an order for setting aside the decree as against him, and shall appoint a day for proceeding with the suit; provided that where the decree is of such a nature that it cannot be set aside as against such defendant only, it may be set aside against all or any of the other defendants also.]

<sup>3</sup>[(7) The notice of passing of the *ex-parte* decree referred to in sub-section (6) shall be sent to the defendant by the Family Court together with a certified copy of the decree within three days of the passing of the decree, through process server or by registered post, acknowledgement due, or through courier service or any other mode or manner as it may deem fit.

(8) Service of notice and its accompaniment in the manner provided in sub-section (7) shall be deemed to be due service of the notice and decree on the defendant.]

**10. Pre-trial proceedings.**— <sup>4</sup>[(1) When the written statement is filed, the Court shall fix an early date for a pre-trial hearing of the case.]

(2) On the date so fixed, the Court shall examine the plaint, the written statement (if any) and the precis of evidence and documents filed by the parties and shall also, if it so deems fit, hear the parties and their counsel.

<sup>5</sup>[(3) The Family Court may, at the pre-trial stage, ascertain the precise points of controversy between the parties and attempt to effect compromise between the parties.]

<sup>6</sup>[(4) Subject to subsection (5), if compromise is not possible between the parties, the Family Court may, if necessary, frame precise points of controversy and record evidence of the parties.]

<sup>7</sup>[(5) In a suit for dissolution of marriage, if reconciliation fails, the Family Court shall immediately pass a decree for dissolution of marriage and, in case of dissolution of marriage

<sup>1</sup>Inserted by the Family Courts (Amendment) Act 2015 (XI of 2015).

<sup>2</sup>Substituted for the words “reasonable time of the passing thereof” by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>3</sup>New sub-sections (7) and (8) added by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>4</sup>Substituted by the West Pakistan Family Courts (Amendment) Act, 1969 (I of 1969).

<sup>5</sup>Substituted by the Family Courts (Amendment) Act 2015 (XI of 2015) for the following:

“(3) At the pre-trial, the Court shall ascertain the points at issue between the parties and attempt to effect a compromise or reconciliation between the parties, if this be possible.”

<sup>6</sup>Substituted by the Family Courts (Amendment) Act 2015 (XI of 2015) for the following:

“(4) If no compromise or reconciliation is possible the Court shall frame the issues in the case and fix a date for recording of evidence:

Provided that notwithstanding any decision or judgment of any Court or tribunal, the Family Court in a suit for dissolution of marriage, if reconciliation fails, shall pass decree for dissolution of marriage forthwith and shall also restore to the husband the *Haq Mehr* received by the wife in consideration of marriage at the time of marriage.”

<sup>7</sup>New sub-section (5) inserted by the Family Courts (Amendment) Act 2015 (XI of 2015).

through khula, may direct the wife to surrender up to fifty percent of her deferred dower or up to twenty-five percent of her admitted prompt dower to the husband.]

<sup>1</sup>[(6) Subject to subsection (5), in the decree for dissolution of marriage, the Family Court shall direct the husband to pay whole or part of the outstanding deferred dower to the wife.]

**11. Recording of evidence.**— (1) On the date fixed for <sup>2</sup>[recording of the evidence] the Family Court shall examine the witnesses produced by the parties in such order as it deems fit.

<sup>3</sup>[(1A) The Family Court shall record or cause to be recorded, the substance of the statement of a witness or may record or cause to be recorded, the statement of a witness through audio or video recording.]

(2) The Court shall not issue any summons for the appearance of any witness unless, within three days of the framing of issues, any party intimates the Court that it desires a witness to be summoned through the Court and the Court is satisfied that it is not possible or practicable for such party to produce the witness.

<sup>4</sup>[(3) The witnesses shall give their evidence in their own words:

Provided that the parties or their counsel may further examine, cross-examine or re-examine the witnesses:

Provided further that the Family Court may forbid any question which it regards as indecent, scandalous or frivolous or which appears to it to be intended to insult or annoy or needlessly offensive in form.]

<sup>5</sup>[(3A) The Family Court may, if it so deems fit, put any question to any witness for the purposes of elucidation of any point which it considers material in the case.]

(4) The Family Court may permit the evidence of any witness to be given by means of an affidavit:

Provided that if the Court deems fit it may call such witness for the purpose of examination in accordance with sub-section (3).

**12. Conclusion of trial.**— (1) After the close of evidence of both sides, the Family Court shall make another effort to effect a compromise or reconciliation between the parties <sup>6</sup>[within a period not exceeding fifteen days].

(2) If such compromise or reconciliation is not possible, the Family Court shall announce its judgement and give a decree.

**<sup>7</sup>[12A. Cases to be disposed of within a specified period.**— The Family Court shall dispose of a case, including a suit for dissolution of marriage, within a period of six months from the date of institution:

<sup>1</sup>New sub-section (6) inserted by the Family Courts (Amendment) Act 2015 (XI of 2015).

<sup>2</sup>Substituted by the West Pakistan Family Courts (Amendment) Act, 1969 (I of 1969), for “the hearing of the evidence”.

<sup>3</sup>New sub-section (1A) inserted by the Family Courts (Amendment) Act 2015 (XI of 2015).

<sup>4</sup>Substituted by the West Pakistan Family Courts (Amendment) Act, 1969 (I of 1969).

<sup>5</sup>Added by the West Pakistan Family Courts (Amendment) Act, 1969 (I of 1969).

<sup>6</sup>Added by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>7</sup>The following section 12A was added by the Family Courts (Amendment) Act, 1996 (Federal Act X of 1996) and substituted by the Family Courts (Amendment) Ordinance 2002 (LV of 2002):

“12A. **Certain cases to be disposed of within a specified period.**— Notwithstanding anything contained hereinbefore, a suit for dissolution of marriage shall finally be disposed of within a period of four months from its institution:

Provided that where an appeal lies against the dissolution of marriage, such appeal shall be disposed of within four months.”

Provided that where a case is not disposed of within six months, either party shall have a right to make an application to the High Court for necessary direction as the High Court may deem fit.]

**13. Enforcement of decrees.**— (1) The Family Court shall pass a decree in such form and in such manner as may be prescribed, and shall enter its particulars in the prescribed register.

(2) If any money is paid or any property is delivered in the presence of the Family Court, in satisfaction of the decree, it shall enter the fact of payment <sup>1</sup>[or] the delivery of property, as the case may be, in the aforesaid register.

(3) Where a decree relates to the payment of money and the decretal amount is not paid within time specified by the Court <sup>2</sup>[not exceeding thirty days], the same shall, if the Court so directs be recovered as arrears of land revenue, and on recovery shall be paid to the decree-holder.

(4) The decree shall be executed by the Court, passing it or by such other Civil Court as the District Judge may, by special or general order, direct.

(5) A Family Court may, if it so deems fit, direct that any money to be paid under a decree passed by it be paid in such installments as it deems fit.

**14. Appeals.**— <sup>3</sup>[(1) Notwithstanding anything provided in any other law for the time being in force, a decision given or a decree passed by a Family Court shall be appealable—

(a) to the High Court, where the Family Court is presided over by a District Judge, an Additional District Judge or a person notified by Government to be of the rank and status of a District Judge or an Additional District Judge; and

(b) to the District Court, in any other case.]

(2) No appeal shall lie from a decree passed by Family Court—

(a) for dissolution of marriage, except in the case of dissolution for reasons specified in clause (a) of item (viii) of section 2 of the Dissolution of Muslim Marriages Act, 1939;

(b) for dower <sup>4</sup>[or dowry] not exceeding rupees <sup>5</sup>[one hundred thousand];

(c) for maintenance of rupees <sup>6</sup>[five thousand] or less per month.

<sup>7</sup>[(3) No appeal or revision shall lie against an interim order passed by a Family Court.

(4) The appellate Court referred to in sub-section (1) shall dispose of the appeal within a period of four months.]

**15. Power of Family Court to summon witnesses.**— (1) A Family Court may issue summons to any person to appear and give evidence, or to produce or cause the production of any document:

Provided that—

(a) no person who is exempt from personal appearance in a Court under sub-section (1) of section 133 of the Code of Civil Procedure, 1908, shall be required to appear in person;

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<sup>1</sup>Substituted, for the word “and”, by the West Pakistan Family Courts (Amendment) Ordinance, 1966 (X of 1966).

<sup>2</sup>Inserted by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>3</sup>Substituted by the West Pakistan Family Courts (Amendment) Ordinance, 1966 (X of 1966).

<sup>4</sup>Inserted by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>5</sup>Substituted previously by the Family Courts (Amendment) Ordinance 2002 (LV of 2002) for “fifteen thousand” and then by the Family Courts (Amendment) Act 2015 (XI of 2015) for “thirty thousand”.

<sup>6</sup>Substituted previously by the Family Courts (Amendment) Ordinance 2002 (LV of 2002) for “five hundred” and then by the Family Courts (Amendment) Act 2015 (XI of 2015) for “one thousand”.

<sup>7</sup>New sub-sections (3) and (4) added by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

(b) a Family Court may refuse to summon a witness or to enforce a summons already issued against a witness when, in the opinion of the Court, the attendance of the witness cannot be procured without such delay, expense or inconvenience as in the circumstances would be unreasonable.

(2) If any person to whom a Family Court has issued summons to appear and give evidence or to cause the production of any document before it, willfully disobeys such summons, the Family Court may take cognizance of such disobedience, and after giving such opportunity to explain, sentence him to a fine <sup>1</sup>[of five thousand] rupees.

**16. Contempt of Family Courts.**— A person shall be guilty of contempt of the Family Court if he without lawful excuse—

- (a) offers any insult to the Family Court; or
- (b) causes an interruption in the work of the Family Court; or
- <sup>2</sup>[(bb) misbehaves with any person in the Court premises or uses abusive language; threats or uses physical force or intimidates in any form; or]
- (c) refuses to answer any question put by the Family Court, which he is bound to answer; or
- (d) refuses to take oath to state the truth or to sign any statement made by him in the Family Court;

and the Family Court may forthwith try such person for such contempt and sentence him to a fine not exceeding rupees <sup>3</sup>[two thousand].

**17. Provisions of Evidence Act and Code of Civil Procedure not to apply.**— (1) Save as otherwise expressly provided by or under this Act, the provisions of the <sup>4</sup>[Qanun-e-Shahadat, 1984 (P.O. No. 10 of 1984)], and the Code of Civil Procedure, 1908, <sup>5</sup>[except sections 10 and 11,] shall not apply to proceedings before any Family Court <sup>6</sup>[in respect of Part I of Schedule].

(2) Sections 8 to 11 of the Oaths Act, 1872, shall apply to all proceedings before the Family Courts.

<sup>7</sup>[**17A. Suit for maintenance.**— (1) In a suit for maintenance, the Family Court shall, on the date of the first appearance of the defendant, fix interim monthly maintenance for wife or a child and if the defendant fails to pay the maintenance by fourteen day of each month, the defence of the defendant shall stand struck off and the Family Court shall decree the suit for maintenance on the basis of averments in the plaint and other supporting documents on record of the case.

(2) In a decree for maintenance, the Family Court may:

- (a) fix an amount of maintenance higher than the amount prayed for in the plaint due to afflux of time or any other relevant circumstances; and

<sup>1</sup>Substituted for “not exceeding one thousand” by the Family Courts (Amendment) Act 2015 (XI of 2015).

<sup>2</sup>Inserted by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>3</sup>Substituted for the word “two hundred” by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>4</sup>Substituted for “Evidence Act, 1872” by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>5</sup>Inserted by the West Pakistan Family Courts (Amendment) Act, 1967 (XV of 1967).

<sup>6</sup>Added by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>7</sup>The following new section 17A was inserted by the Family Courts (Amendment) Ordinance 2002 (LV of 2002) and substituted by the Family Courts (Amendment) Act 2015 (XI of 2015):

**“17A. Interim order for maintenance.**— At any stage of proceedings in a suit for maintenance, the Family Court may pass an interim order for maintenance, whereunder the payment shall be made by the fourteenth of each month, failing which the Court may strike off the defence of the defendant and decree the suit.”

(b) prescribe the annual increase in the maintenance.

(3) If the Family Court does not prescribe the annual increase in the maintenance, the maintenance fixed by the Court shall automatically stand increased at the rate of ten percent each year.

(4) For purposes of fixing the maintenance, the Family Court may summon the relevant documentary evidence from any organization, body or authority to determine the estate and resources of the defendant.]

<sup>1</sup>**17B. Power of the Court to issue Commission.**— Subject to such conditions and limitations as may be prescribed, the Court may issue a Commission to,-

- (a) examine any person;
- (b) make a local investigation; and
- (c) inspect any property or document.]

**18. Appearance through agents.**— If a person required under this Act to appear before a Family Court, otherwise than as a witness, is a *pardah nashin* lady, the Family Court may permit her to be represented by a duly authorised agent.

<sup>2</sup>**19. Court fee.**— Notwithstanding anything contained in the Court Fees Act, 1870 (VII of 1870), the Court fee to be paid on any plaint or memorandum of appeal shall be rupees fifteen for any kind of suit or appeal under this Act.]

<sup>3</sup>**20. Family Court as Judicial Magistrate.**— (1) A Family Court shall be deemed as the Judicial Magistrate of the first class under the Code of Criminal Procedure, 1898 (V of 1898) for taking cognizance and trial of any offence under this Act; the Muslim Family Laws Ordinance, 1961 (VIII of 1961); and, the Child Marriage Restraint Act, 1929 (XIX of 1929).

(2) A Family Court shall conduct the trial of an offence under subsection (1) in accordance with the provisions of Chapter XXII of the Code of Criminal Procedure, 1898 (V of 1898) relating to the summary trials.

(3) An offence other than contempt of a Family Court shall be cognizable on the complaint of the Union Council, Arbitration Council or the aggrieved party.]

<sup>4</sup>**21. Provisions of Muslim Family Laws Ordinance, 1961 not affected.**— Nothing in this Act shall be deemed to affect any of the provisions of Muslims Family Laws Ordinance, 1961, or the rules made thereunder.]

<sup>1</sup>New section added by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>2</sup>Substituted by the Family Courts (Amendment) Ordinance 2002 (LV of 2002) for the following:

“19. **Court fees.**— Notwithstanding anything to the contrary contained in the Court Fees Act, 1872, the court fees to be paid on any plaint filed before a Family Court shall be rupee [fifteen] for any kind of suit.”

The word in crotchets was earlier substituted by the Punjab Finance Act, 1973 (XIV of 1973), for “one”.

<sup>3</sup>Section 20 substituted by the Family Courts (Amendment) Act 2015 (XI of 2015).

At the time of first substitution by the Family Courts (Amendment) Ordinance 2002 (LV of 2002), the original section 20 read as under:

“20. **Investment of powers of Magistrates on Judges.**— Government may invest any Judge of a Family Court with powers of Magistrate First Class to [make order for maintenance] under section 488 of the Code of Criminal Procedure, 1898.”

[Note: The words in crotchets had been substituted by the Punjab Finance Act, 1973 (XIV of 1973), for “to hear the case”.]

After substitution by the Family Courts (Amendment) Ordinance 2002 (LV of 2002), section 20 read as under:

“20. **Family Court to exercise the powers of the Judicial Magistrate.**— A Family Court shall have and exercise all the powers of a Judicial Magistrate of the First Class under the Code of Criminal Procedure, 1898 (Act V of 1898).”

<sup>4</sup>Substituted by the West Pakistan Family Courts (Punjab Amendment) Ordinance, 1971 (XXIV of 1971).

<sup>1</sup>[21A. **Interim order pending suit.**— The Family Court may pass an interim order to preserve and protect any property in dispute in a suit .and any other property of a party to the suit, the preservation of which is considered necessary for satisfaction of the decree, if and when passed.]

<sup>2</sup>[21B. **Intimation to Arbitration Council.**— If a Family Court decrees dissolution of a Muslim marriage, the Family Court shall immediately but not later than three days from the decree send by registered post or other means a certified copy of the decree to the concerned Chairman of the Arbitration Council and upon receipt of the decree, the Chairman shall proceed as if he had received intimation of *Talaq* under the Muslim Family Laws Ordinance, 1961 (VIII of 1961).]

**22. Bar on the issue of injunctions by Family Court.**— A Family Court shall not have the power to issue an injunction to, or stay any proceedings pending before, a Chairman or an Arbitration Council.

**23. Validity of marriages registered under the Muslim Family Laws Ordinance, 1961, not to be questioned by Family Courts.**— A Family Court shall not question the validity of any marriage registered in accordance with the provisions of the Muslim Family Laws Ordinance, 1961, nor shall any evidence in regard thereto be admissible before such Court.

**24. Family Courts to inform Union Councils of cases not registered under the Muslim Family Laws Ordinance, 1961.**— If in any proceedings before a Family Court it is brought to the notice of the Court that a marriage solemnized under the Muslim Law after the coming into force of the Muslim Family Laws Ordinance, 1961, has not been registered in accordance with the provisions of the said Ordinance and the rules framed thereunder, the Court shall communicate such fact in writing to the Union Council for the area where the marriage was solemnized.

**25. Family Court deemed to be a District Court for purposes of Guardians and Wards Act, 1890.**— A Family Court shall be deemed to be a District Court for the purposes of the Guardians and Wards Act, 1890, and notwithstanding anything contained in this Act, shall, in dealing with matters specified in that Act, follow the procedure prescribed in that Act.

<sup>3</sup>[25A. **Transfer of cases.**— (1) Notwithstanding anything contained in any law the High Court may, either on the application of any party or of its own accord, by an order in writing—

- (a) transfer any suit or proceeding under this Act from one Family Court to another Family Court in the same district or from a Family Court of one district to a Family Court of another district; and
- (b) transfer any appeal or proceeding under this Act, from the District Court of one district to the District Court of another district.

(2) A District Court may, either on the application of any party or of its own accord, by an order in writing, transfer any suit or proceeding under this Act from one Family Court to another Family Court in a district or to itself and dispose it of as a Family Court.

<sup>1</sup>New section inserted by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>2</sup>New section inserted by the Family Courts (Amendment) Act 2015 (XI of 2015).

<sup>3</sup>Added by the West Pakistan Family Courts (Punjab Amendment) Ordinance, 1971 (XXIV of 1971).

<sup>1</sup>[(2a) Where a Family Court remains vacant or the presiding officer remains on leave or absent for any reason, except due to vacations, for more than thirty days a District Court may, either on the application of any party or of its own accord, by order in writing, transfer any suit or proceeding from such Family Court to another Family Court in a District or to itself and disposed it of as a Family Court.

(2b) On the application of any of the parties and after notice to. the parties and after hearing such of them as desire to be heard, or of its own motion without such notice, the Supreme Court may at any stage transfer any suit, appeal or other proceedings under this Act pending before a Court in one Province to a Court in another Province, competent to try or dispose of the same.]

(3) Any Court to which a suit, appeal or proceeding is transferred under the preceding sub-sections, shall, notwithstanding anything contained in this Act, have the jurisdiction to dispose it of in the manner as if it were instituted or filed before it:

Provided that on the transfer of a suit, it shall not be necessary to commence the proceedings before the succeeding Judge *de novo* unless the Judge, for reasons to be recorded in writing directs otherwise.]

<sup>2</sup>**[25B. Stay of proceedings by the High Court and District Courts.]**— Any suit, appeal or proceeding under this Act, may be stayed—

(a) by the District Court, if the suit or proceeding is pending before a Family Court within its jurisdiction; and

(b) by the High Court, in the case of any suit, appeal or proceeding <sup>3</sup>[:] ]

<sup>4</sup>[Provided that the stay application shall be finally decided by the District Court or the High Court, as the case may be, within thirty days failing which the interim stay order shall cease to be operative.]

**26. Power to make rules.**— (1) Government may, by notification in the official Gazette, make rules to carry into effect the provisions of this Act.

(2) Without prejudice to the generality of the provisions contained in sub-section (1), the rules so made may, among other matters, provide for the procedure, which shall not be inconsistent with the provisions of this Act, to be followed by the Family Courts.

## SCHEDULE [SEE SECTION 5]

### <sup>5</sup>[PART I]

1. Dissolution of marriage <sup>6</sup>[including *Khula*].
2. Dower.
3. Maintenance.
4. Restitution of conjugal rights.
5. Custody of children <sup>7</sup>[and the visitation rights of parents to meet them].
6. Guardianship.
- <sup>8</sup>[7. Jactitation of marriage.]

<sup>1</sup>New sub-sections (2a) and (2b) inserted by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>2</sup>Added by the West Pakistan Family Courts (Punjab Amendment) Ordinance, 1971 (XXIV of 1971).

<sup>3</sup>Substituted for the full-stop by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>4</sup>Added by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>5</sup>Inserted by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>6</sup>Inserted by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>7</sup>Added by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).

<sup>8</sup>Added by the West Pakistan Family Courts (Amendment) Act, 1969 (I of 1969).

<sup>1</sup>[8. Dowry.]

<sup>2</sup>[9. The personal property and belongings of a wife and a child living with his mother.

10. Any other matter arising out of the *Nikahnama*.]

<sup>3</sup>[PART II

Offences and aid and abetment thereof under Section 337A (i), 337F (i), 341, 342, 343, 344, 345, 346, 352 and 509 of the Pakistan Penal Code (Act XLV of 1860)]

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<sup>1</sup>Added by the Family Courts (Amendment) Act, 1997 (Federal Act VII of 1997).

**Note:** This amendment shall not effect pending cases (section 3 *ibid*).

<sup>2</sup>The following new entry 9 was added by the Family Courts (Amendment) Ordinance 2002 (LV of 2002) and substituted by the Family Courts (Amendment) Act 2015 (XI of 2015):

“9. Personal property and belongings of a wife.”

<sup>3</sup>Added by the Family Courts (Amendment) Ordinance 2002 (LV of 2002).